

SENATE No. 1375

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to preserve employer autonomy.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 1375

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1375) of Bruce E. Tarr for legislation to preserve employer autonomy relative to employee leave. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to preserve employer autonomy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of chapter 175M of the General Laws is hereby amended by
2 removing the words “6 month” in subsection (c) and replacing it with the words “3 months”.

3 SECTION 2. Section 9 of chapter 175M of the General Laws is hereby amended by
4 removing the word “presumed” in subsection (c).

5 SECTION 3. Section 9 of chapter 175M of the General Laws is hereby amended by
6 removing the following words in subsection (c). “Such presumption shall be rebutted only by
7 clear and convincing evidence that such employer's action was not retaliation against the
8 employee and that the employer had sufficient independent justification for taking such action
9 and would have in fact taken such action in the same manner and at the same time the action was
10 taken, regardless of the employee's use of leave, restoration to a position or participation in
11 proceedings or inquiries as described in this subsection.”